

25NWCV01198 25NWCV01198

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV01198 Hearing Date: June 24, 2026 Dept: SED

NALONNI MADDEN, ET

AL. V. DRIFTWOOD PINES, LLC

CASE NO.: 25NWCV01198

HEARING: 06/24/2026 @

9:30 a.m.

#14

TENTATIVE ORDER

Defendant Driftwood Pines,

LLC's unopposed motion to consolidate is GRANTED.

Moving party to give notice.

Defendant Driftwood Pines, LLC (Defendant)

moves for an order consolidating the instant case with the matter entitled Merlina Stanford v. Driftwood Pines, LLC, Case No. 26STCV00720.

Defendant also requests that the

jury trial and final status conference in Case No. 26STCV00720 be set the same date as the trial and final status conference dates in 25NWCV01198.

Background

On September 3, 2025, Plaintiffs

Nalonni Madden, Garret Madden, Nikolas Madden, a minor and through his guardian ad litem Nalonni Madden, Aiden Madden, a minor by and through his guardian ad litem Nalonni Madden (collectively, Plaintiffs) filed the operative First Amended Complaint against Defendant and Does 1 through 20, inclusive, asserting six causes of action: (1) Breach of Contract/Covenant of Quiet Enjoyment /Warranty of Habitability; (2) Tortious Breach of Implied Warranty of Habitability; (3) Negligence; (4) Violation of Unfair Business Practices; (5) Tenant Harassment; and (6) Wrongful Eviction.

Plaintiffs allege that Defendant knowingly allowed them to live in uninhabitable conditions despite repeated complaints and medical issues arising from those conditions. Plaintiffs further claim Defendant ignored or minimized repair requests to save money, harassed them for reporting code violations, and ultimately forced them out of the unit in retaliation.

On April 2, 2026, Defendant filed a notice of related case seeking to relate this instant action (Madden Case) to Merlina Stanford v. Driftwood Pines, LLC, Case No. 26STCV00720 (Stanford Case).

On May 12, 2026, Defendant filed the instant motion to consolidate this instant case with the later-filed related action.

No opposition has been filed.

Legal Standard

Code of Civil Procedure (CCP) section 1048 states: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

Under California Rules of Court, rule 3.350(a)(1), a notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C)

Be filed in each case sought to be consolidated. The motion to consolidate: (A) is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) must be served on all attorneys of record and all non-represented parties in all of the cases sought to be consolidated; and (C) must have a proof of service filed as part of the motion. (Cal. Rules of Court, rule 3.350(a)(2).)

CCP section 404.1 provides

guidance on what the court should consider when ruling on a motion to consolidate including: (1) whether consolidation will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; (2) the convenience of parties, witnesses, and counsel; (3) the relative development of the actions and the work product of counsel; (4) the efficient utilization of judicial facilities and manpower; (5) the calendar of the courts; (6) the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and (7) the likelihood of settlement of the actions without further litigation should coordination be denied.

Analysis

Defendant argues that

consolidation is proper because the actions involve the same underlying facts, overlapping parties, and common witnesses. Defendant further contends that no party will be prejudiced by consolidation, that consolidation will promote judicial economy by avoiding duplicative discovery and trials, and that it will reduce the risk of inconsistent rulings.

Here, both lawsuits arise from

the same tenancy at 5400 Clark Ave., Unit 232, Lakewood, California 90712 (the Subject Property), involving Plaintiffs Nalonni Madden and Garrett Madden and Defendant beginning on or about January 11, 2018. Nalonni Madden and Garrett Madden are plaintiffs in the Madden Case and are identified as the guardians of the plaintiff in the Stanford Case. In

both actions, Plaintiffs allege substantially the same conditions at the Subject Property, including inadequate plumbing, dampness and mold, inadequate sanitation, nuisance, improper maintenance, and dilapidation. Both complaints assert the same causes of action. In addition, both sets of plaintiffs are represented by the same counsel, Daniel Levi of The Tenants Law Firm, and Defendant is represented by the same counsel, Corine Zygelman of

Reisz Sideman Eisenberg, in both matters.

The Court finds that consolidation is appropriate because the actions involve common questions of law and fact and consolidation will promote judicial efficiency. "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).) One purpose of consolidation is to promote trial convenience and judicial economy. (Mueller v. J.C. Penney Co. (1985) 173 Cal.App.3d 713, 722.)

Accordingly, the Court GRANTS Defendant's motion.

Conclusion

Based on the foregoing, Defendant Driftwood Pines, LLC's unopposed motion to consolidate is GRANTED.